Decision on an application to change conditions of a resource consent under section 127 of the Resource Management Act 1991

Discretionary activity under section 127(3)

Application number(s):	SUB60315119-A
Original consent number(s):	SUB60315119
Applicant:	Ray Nicklin and Desma Nicklin
Site address:	53B Remiger Road, Puhoi
Legal description:	Amalgamated sites: Lot 8 DP 208981 – 57.4262 ha Lot 1 DP 179794- 24.1140ha Allotment 54A Parish of Puhoi- 21.6507ha Part Allotment 36 Parish of Puhoi- 37.0692ha Allotment 29,32,35 Parish of Puhoi and Part Allotment 28,30-31 Parish of Puhoi- 160.87 ha (Part-cancelled) Stand-alone site: Lot 5 DP 198556 – 1.1705ha

Proposal:

The applicant seeks to vary conditions 1, 4b), 5c), 5a) and 6j) of resource consent SUB60315119. The proposed changes relate to minor alterations in lot sizes, location and changing the natural areas to be protected.

Note: For the avoidance of doubt, any reference in this decision to 'vary' or 'variation application' shall be taken to mean an application to change or cancel consent conditions under s127 of the RMA.

This discretionary activity under s127 of the Resource Management Act 1991 (RMA) is for changes to condition(s) of consent SUB60315119 involving the following amendments (with strikethrough for deletion, underline for insertions):

Subdivision consent (s11) – SUB60315119

Variation to Condition 1

The non-complying activity shall be carried out in accordance with the documents and drawings and all supporting additional information submitted with the application, detailed

below, and all referenced by the council as resource consent number SUB60315119 and SUB60315119-A:

- Application Form and Assessment of Environmental Effects prepared by Cato Bolam Consultants Ltd, titled 'Ray Nicklin and Desma Nicklin, 53B Remiger Road, Puhoi, Resource Consent Application, Ref: 40320, dated 30th November 2017:

- Application Form and Assessment of Environmental Effects prepared by Cato Bolam Consultants Ltd, titled 'Ray Nicklin and Desma Nicklin, 53B Remiger Road, Puhoi, Resource Consent Application, Section 127 Consent Variation Ref: 40320, dated 15/5/20:

Report title and reference	Author	Rev	Dated
~~'Bush Quality Assessment Report'~~	~~Cato Bolam Consultants- Jessica Reaburn~~	~~-A~~	~~01/09/2017~~
Bush Quality Assessment Report	Cato Bolam Consultants – Brittany Pearce	_	04/03/2020
'Riparian Revegetation and Management Report'	Cato Bolam Consultants- Jessica Reaburn	R1	01/10/2017
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Drawing title and reference	Author	Rev	Dated
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~~'Scheme Plan of Lots 1 – 8 being proposed subdivision of LOT 8 DP 208981, LOT 5 DP 198556, LOT 1 DP 179794, ALLOTS 32,35,54a & PR ALLOTS 30,31,36 PARISH OF PUHOI – Sheet 2 of 2 (1200)~~	~~Cato Bolam Consultants-~~	~~5~~ R10	~~Sep 2017~~ 09/19

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Advice note: (The scheme plans noted above indicate different site sizes for Lots 1, 2 and 8 compared to that which exists. The existing site sizes are accurate).

Other additional information	Author	Rev	Dated
Email titled 'Response to Section 92 request'	Cato Bolam-Consultants-Jessica Reaburn		23th March 2018
Email titled RE: [#CBC 40320 SUB60315199 – Remiger Road	Cato Bolam-Consultants-Jessica Reaburn		27th March 2018
E-mail ref: SUB6031511	Cato Bolam Consultants	-	9/5/18
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Correspondence- s92 response- *RE:* [#CBC 40320] SUB6031519- A Remiger Road- s92 RMA Request	Cato Bolam Consultants		26/6/20
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Variation to Condition 4b

Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

b) The consent holder shall provide council with the calculated area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- ~~CW~~ CV, CO, CX- CZ,~~ Z~~) as shown on the approved scheme plan referred to in condition 1 and as defined by survey.

Variation to Condition 4c

Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

c) The survey title plan shall show and identify the area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- ~~CW~~ CV, CO, CX- CZ,~~ Z~~) as "area to be subject to land covenant". The boundaries of the covenant must coincide with the proposed fence line referred to in condition 5a.

Variation to Condition 5a

Section 224(c) compliance Conditions

5. Before a Certificate is issued pursuant to section 224(c) of the Act, the consent holder shall satisfy the following conditions at the consent's holder:

a) A permanent ungated continuous stock-proof fence, (minimum seven wire post and batten fence with no gates) capable of preventing browsing or other damage by farmed animals, shall be constructed outside of the bush and riparian areas to be protected on Lots 2,4,5,6 and 7 (Areas CP- ~~CW~~ CV, CO, CX, CZ and CY ~~and Z~~) and maintained.

Variation to Condition 6j

6. The following conditions of consent shall be complied with on a continuing basis by the consent holder (which includes the subdividing owner and subsequent owners) and shall be recorded in a consent notice issued pursuant to s221 of the Resource Management Act 1991 registered on the title(s):

j. The natural areas to be protected on Lot 2 (CX), 4 (CZ),5 (~~Z,~~CO & CY), 6 (CV,~~CW~~ CS) and 7 (CP – CR, CT -CU) identified by survey in accordance with conditions of resource consent

SUB60315119-A shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

New condition 5K)

The consent holder must provide written confirmation from their appointed surveyor or engineer that all servicing for the existing dwelling on Lot 6 and the dwelling under construction on Lot 3 remain within the respective site boundaries.

Decision

I have read the application, supporting documents, and the report and recommendations on the application for variation. I am satisfied that I have sufficient information to consider the matters required by the RMA and make a decision under delegated authority on the application.

Acting under delegated authority, under sections 127, 104, 104B, and Part 2 of the RMA, the application for variation to conditions of a resource consent is **GRANTED**.

Reasons

The reasons for this decision are:

1. The proposal is appropriately considered under s127 as the changes will not result in a fundamentally different activity or materially different effects.

2. In accordance with an assessment under s104(1)(a)-(ab) and s127(3) of the RMA, the actual and potential effects from the variation will be acceptable as:

    a. The relocation of lot boundaries and subsequent changes in lot sizes does not introduce any additional sites nor development potential on any one lot. The size and shape of Lot 3 has regard to natural features, existing development, consented development, servicing and the presence of higher quality soils. The application will maintain the rural character and amenity anticipated in this location.

    b. Covenants 'CT', 'CS' and 'CV' are altered in location to include the Significant Ecological Area ('SEA') area located in the northern part of Lots 6 and 7. As a result the total area to be protected will increase slightly to 53.97ha in comparison to the approved consent. The areas to be protected all remain of SEA quality, and the application continues to meet AUP(OP) Standards regarding the area and quality of native areas protection and the lot yield.

    c. The size of Lot 3 has regard to the soil quality present, endeavouring to achieve an appropriate balance between protecting higher quality soils and maintaining rural character and amenity. The land within Lot 3 will contain a dwelling (under construction) and on- site servicing areas. The application will have the same or similar effects on rural productivity to the future environment and an improved outcome when compared the consented development and approved location of Lot 3.

    d. All sites can be appropriately serviced (or are in relation to existing development).

    e. All sites can obtain access from Remiger Road, via the proposed right of way easements.

f. In terms of positive effects, the application will still result in the protection of natural features of high quality (the total area will slightly increase).

g. With reference to s104(1)(ab), there are no specific offsetting or environmental compensation measures proposed or agreed to by the applicant to ensure positive effects on the environment.

3. In accordance with an assessment under s104(1)(b) and s127(3) of the RMA, the variation is consistent with the relevant statutory documents. In particular:

National Policy Statement- Highly Productive Land

The application relates to the subdivision of highly productive land, as the parent site contains areas of elite soils (policy 5). The relocation of Lot 3, a rural lifestyle site, requires assessment in this regard, and the impacts on land- based primary production (objective 1, policy 4, policy 6). Lot 3 is not created as a vacant site but contains a dwelling that has obtained building consent and is under construction. This is not a case of an application relying on the permitted baseline, but one where the future environment contains this dwelling and servicing. This is a relevant consideration under the NPS- HPL, as this future environment already impacts on the productive potential of the Lot 3 land area.

The smaller size of Lot 3 (0.77ha) has regard to the soil quality. The applicant has sought to minimise the size of Lot 3, achieving a balance between rural character, the area required for the consented building and associated servicing, and retaining land in the balance site for productive purposes.

The application does create a further lifestyle site (Lot 3) on highly productive land, but this is already consented on high productive land. The NPS- HPL seeks that this be avoided (policy 7) except where provided for in the NPS. Clause 3.8 provides exemptions for rural subdivision on highly productive land, including where the proposed lots will retain the overall productive capacity of the subject land over the long term. A building consent has been issued for proposed Lot 3 and it is under construction. On- site servicing is proposed to the north of this, along with access, parking etc. Having regard to this consented development, the productive potential of this area is already lost in the medium term at least. The application does not impact on this, and the location and size of Lot 3 is directly related to the consented dwelling. It is therefore concluded that the application will retain the overall productive capacity of the subject land over the long term, as it does not remove any additional land from potential productive use and the vast majority of the land remains in the large balance sites.

As consented, Lot 3 was located on the southern side of the farm race/ right of way. Geomaps indicates that approximately 7,700m^2 of this proposed site contained prime soils (the same amount as is indicated as being present on the new proposed Lot 3). This land connects to Lot 6 and is in pasture. It does not contain floodplains and is not as constrained for productive uses as the land now proposed to be Lot 3. Therefore, the amendment now proposed is considered to be an improved outcome in terms of productive potential when compared to that consented.

The application is not considered to be inappropriate use or development (policy 8) in this context.

The application is not contrary to objectives or policies of the NPS- HPL.

Auckland Unitary Plan (Operative in Part)

The Auckland Unitary Plan (OP) contains a Regional Policy Statement, the objectives and policies of which are contained in Chapter B. These set out the direction of managing and the use and development and protection of the natural and physical resources of the Auckland region. They anticipate that land subdivision protects and enhances significant indigenous biodiversity (Objectives B9.4.1 (1)(3) & (4)). The variation increases the area of native bush protection and therefore the subdivision maintains being an activity provided for in the AUP(OP).

Relevant matters in the RPS were assessed as part of the consented application. The application maintains rural amenity values and is considered to be consistent with the policy direction sought in the RPS. Potential adverse effects in terms of character and amenity are acceptable in this instance as the lots are still of a size and location that can contain permitted development under the zone controls and, in relation to Lot 3, consented development. No other changes in building platforms, servicing or transport are proposed or required other than that related to Lot 3 which is acceptable.

Provisions related to the Rural Production Zone under the AUP(OP) are focussed on providing for a wide range and diversity of both existing and new rural production activities and to maintain and protect the productive capability of the land from inappropriate subdivision, use and development (Objectives H19.3.2(1) & (2)). The application, when considered with conditions, is not contrary to objectives and policies such as E39.2(1), E39.2(10), E39.3(3), H19.2.1(4), H19.2.2(4), H19.3.2(2)) which seek to maintain the rural character and qualities of this area. The application is consistent with the ecological outcomes sought by objectives and policies (AUP(OP): E39.2(12), E39.2(14), E39.3(11), E39.3(16), E39.3(18).

The changes will not impact on the character of the immediate area, as no new development potential is achieved across the lots with the number of potential additional dwellings remaining the same. The development provides appropriate on- site servicing within the site boundaries(E39.2(17)) and has regard to natural hazards (E39.3(2), E39.3(30), E39.3(31)) the same as the consented scenario.

The subdivision and proposed changes to lot boundaries is logical and the sites remain accessible (Objective E39.2.6). The proposal will protect a significant area of indigenous revegetation planting in line with Objective E39.2.14(a). The proposed subdivision will not exacerbate natural hazards (Policy E39.3.2) or stormwater issues (Policy E39.3.30 and E39.3.31) nor will it disrupt high quality rural productive land (Policy E39.3.3).

It is noted that the site is located in an area without elite soils but containing an area of prime soils. In this regard, the application does not create a greater degree of effect than that consented or the future environment (in relation to Lot 3). Large areas of land will be retained in the balance site (295.82ha), including prime soils. A range of production activities can still occur on the balance site.

The rural- residential lots will continue to be created in a cluster on the very edge of the property, preserving the rural character of remainder of the property and keeping it free from

buildings and residential development. This also reduces the potential for reverse sensitivity to be created.

The proposal does therefore not significantly detract from the aims of the rural zone as it retains the rural productive potential of the balance sites (H19.2.1.2, H19.2.1.4, H19.2.3.1, H19.2.3.2).

4. In accordance with an assessment under s104(1)(c) and s127(3) of the RMA, no other matters are considered relevant.

5. In the context of this variation application, where the objectives and policies of the relevant statutory documents were prepared having regard to Part 2 of the RMA, they capture all relevant planning considerations and contain a coherent set of policies designed to achieve clear environmental outcomes. They also provide a clear framework for assessing all relevant potential effects and there is no need to go beyond these provisions and look to Part 2 in making this decision as an assessment against Part 2 would not add anything to the evaluative exercise.

6. Overall, the proposal is acceptable and effects less than minor subject to the conditions below.

Conditions

Under sections 108 and 108AA of the RMA, this variation is subject to the following amendments to existing conditions:

Subdivision consent (s11) – SUB60315119

Variation to Condition 1

The non-complying activity shall be carried out in accordance with the documents and drawings and all supporting additional information submitted with the application, detailed below, and all referenced by the council as resource consent number SUB60315119 and SUB60315119-A:

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Advice note: (The scheme plans noted above indicate different site sizes for Lots 1, 2 and 8 compared to that which exists. The existing site sizes are accurate).

Other additional information	Author	Rev	Dated
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Variation to Condition 4b

Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

b) The consent holder shall provide council with the calculated area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- ~~CW~~ CV, CO, CX- CZ~~, Z~~) as shown on the approved scheme plan referred to in condition 1 and as defined by survey.

Variation to Condition 4c

Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

c) The survey title plan shall show and identify the area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- ~~CW~~ CV, CO, CX- CZ~~, Z~~) as "area to be subject to land covenant". The boundaries of the covenant must coincide with the proposed fence line referred to in condition 5a.

Variation to Condition 5a

Section 224(c) compliance Conditions

5. Before a Certificate is issued pursuant to section 224(c) of the Act, the consent holder shall satisfy the following conditions at the consent's holder:

a) A permanent ungated continuous stock-proof fence, (minimum seven wire post and batten fence with no gates) capable of preventing browsing or other damage by farmed animals, shall be constructed outside of the bush and riparian areas to be protected on Lots 2,4,5,6 and 7 (Areas CP- -~~CW~~ CV, CO, CX, CZ and CY ~~and Z~~) and maintained.

Variation to Condition 6j

6. The following conditions of consent shall be complied with on a continuing basis by the consent holder (which includes the subdividing owner and subsequent owners) and shall be recorded in a consent notice issued pursuant to s221 of the Resource Management Act 1991 registered on the title(s):

j. The natural areas to be protected on Lot 2 (CX), 4 (CZ),5 (~~Z,~~CO & CY), 6 (CV,~~CW~~ CS) and 7 (CP – CR, CT -CU) identified by survey in accordance with conditions of resource consent SUB60315119-A shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

New condition 5k)

The consent holder must provide written confirmation from their appointed surveyor or engineer that all servicing for the existing dwelling on Lot 6 and the dwelling under construction on Lot 3 remain within the respective site boundaries.

Advice notes

1. *A copy of the consolidated set of conditions of consent as amended is included as attachment 1 to this section 127 decision.*
2. *The consent holder is reminded that the decision on this section 127 application does not affect the lapse period for the resource consent.*
3. *This decision is to be read in conjunction with any other relevant approved resource consent(s) and does not negate the consent holder's requirement to continue to comply with the conditions of any previously granted resource consent(s) that have been implemented.*

Delegated decision maker:

Name:	Lexie Li
Title:	Senior Planner, Resource Consents
Signed:	
Date:	26 October 2023

Attachment 1: Consolidated conditions of consent as amended

General conditions

1. The non-complying activity shall be carried out in accordance with the documents and drawings and all supporting additional information submitted with the application, detailed below, and all referenced by the council as resource consent number SUB60315119 and SUB60315119-A:

   - Application Form and Assessment of Environmental Effects prepared by Cato Bolam Consultants Ltd, titled 'Ray Nicklin and Desma Nicklin, 53B Remiger Road, Puhoi, Resource Consent Application, Ref: 40320, dated 30th November 2017:

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2. Under section 125 of the RMA, this consent lapses five years after the date it is granted unless:
    a) A survey plan is submitted to council for approval under section 223 of the RMA before the consent lapses, and that plan is deposited within three years of the approval date in accordance with section 224 of the RMA; or
    b) An application under section 125 of the RMA is made to the council before the consent lapses (five years) to extend the period after which the consent lapses and the council grants an extension.
3. The application is to be implemented in stages; the conditions of consent must be met as they relate to each stage. Prior to section 224(c) RMA certification being obtained for each stage, the consent holder shall provide a written summary confirming which conditions have been met and how.

Survey plan approval (s223) conditions

4. Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

    a) The survey title plan shall show and identify the right of way and servicing easements (Areas EE, EA, G, EB, EC, N, O, U, W, ED, B, C and D) on a Schedule of Memorandum of Easements attached to the cadastral survey dataset as a supporting document. The consent holder shall meet the costs for the preparation, review and registration of the easement instruments on the relevant computer registers (certificates of title).

    b) The consent holder shall provide council with the calculated area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- CV, CO, CX- CZ) as shown on the approved scheme plan referred to in condition 1 and as defined by survey.

    c) The survey title plan shall show and identify the area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- CV, CO, CX- CZ) as “area to be subject to land covenant”. The boundaries of the covenant must coincide with the proposed fence line referred to in condition 5a.

    d) The owner of Lots 6 and 7 hereon shall not without the consent of the council transfer or lease or otherwise dispose of any of these parcels of land except in conjunction with the others”.

    This condition shall be incorporated into a covenant pursuant to s.220(2) of the Resource Management Act 1991. The covenant shall be signed by the registered owners and the signed covenant received by the council before the council will approve the survey plan pursuant to s.223 of the Act.

Section 224(c) compliance conditions

5. Before a Certificate is issued pursuant to section 224(c) of the Act, the consent holder shall satisfy the following conditions at the consent holder’s cost:

Fencing of bush and riparian areas

a) A permanent ungated continuous stock-proof fence, (minimum seven wire post and batten fence with no gates) capable of preventing browsing or other damage by farmed animals, shall be constructed outside of the bush and riparian areas to be protected on Lots 2,4,5,6 and 7 (Areas CP- CV, CO, CX, CZ and CY) and maintained. How this will be achieved shall be demonstrated by the provision of a fencing plan, for the certification of the Team Leader- North- West Monitoring.

If the fencing is constructed after the survey title plan has been approved under section 223, a certificate from a licensed cadastral surveyor shall be provided to confirm that the fencing of these areas is located on the covenant boundary.

b) The consent holder shall arrange with council's Team Leader, North-West Monitoring, to inspect the fence which has been erected in accordance with Condition 5a.

Ecology

c) The consent holder shall carry out Weed and Pest Animal Control in accordance with the Weed and Pest Animal Control Plan approved by the condition 1. This shall be to the satisfaction of council's Team Leader, North-West Monitoring, prior to the issue of s224(c) certificate.

Advice Note: *Weed Control means, that there are no fruiting and / or flowering individuals of weed species present within the covenant area and any mature weed species present are dead. In addition there shall be no areas where weed species are smothering and / or out competing native vegetation including suppressing the natural regeneration processes. Control shall be demonstrated to the satisfaction of council's Team Leader, North-West Monitoring or similar position.*

d) All riparian planting and maintenance required to be undertaken on Lots 2, 4 and 5 (within Areas CO, CQ, CY, CZ and Z) shall be undertaken and completed in accordance with the Riparian Revegetation and Management Report (R1) by Cato Bolam Consultants dated 12/7/18 detailed in condition 1.

Landscaping

e) The consent holder shall submit a landscaping plan to the Team Leader North- West Monitoring for certification, relating to:

- Amenity Planting on Lot 5, on the northern boundary (as offered in the AEE);
- The eastern boundary of right of way Areas EE and EA.

The purpose of the planting adjacent to right of way easement EE and EA is to obscure views of the access and its use when viewed from public locations (in particular the road), to reduce potential adverse character effects.

The landscaping plan shall contain:

- A plan of the planted area detailing the proposed plant species, plant sourcing, plant sizes at time of planting, plant locations, density of planting, and timing of planting. In terms of the planting on Lot 5, this shall be native species and compatible with the planting proposed in Areas CY and Z.
- A 5 year programme of establishment and post establishment protection and maintenance (fertilising, weed removal/spraying, replacement of dead/poorly performing plants, watering to maintain soil moisture, length of maintenance programme.

Once approved, the plan shall be implemented.

Engineering

f) The right of way over parts of proposed Lot 6 up to the intersection at Remiger Road shall be upgraded to a rural metaled standard to the Council's "Standards for Engineering Design and Construction". Sections with a grade greater than 1 in 8 shall be to a rural concrete standard. The upgrade shall ensure that the formed carriageway is no less than 3 metres in width. Further it shall include strategically placed passing bay/s for the purpose of servicing lots and make adequate provision for the drainage of surface water as well as provision of any ducts required for power and communications.

g) The engineering works required by this consent shall comply with the Council's "Standards for Engineering Design and Construction" as may be amended from time to time. Engineering Plans, as specified in the "Standards", shall be submitted to the Consents Engineer, and approval thereto received in writing, prior to the commencement of any works on the site.

Any variation or changes to the approved engineering plans shall be submitted for approval as an Amendment and approval received thereto prior to construction of the varied works.

The term 'engineering works' includes, but is not limited to:

1.Earthworks,

2. Any other works required by conditions of this consent.

Note:Structures such as retaining walls, in-ground walls and bridges will require a separate Building Consent.

Note:The plans required under this condition are separate to, and do not form part of, any Building Consent that may be required on the subject site.

h) Before commencement of any works, adequate silt retention structures as detailed in Technical Publication No. 90 "Erosion and Sediment Control Guidelines for Land Disturbing Activities in the Auckland Region" shall be installed. These structures shall be maintained and cleaned out as necessary until such time as complete grass cover, or other non-erodible surface has been re-established over the area. The location and detail of the sediment control shall be included in the Engineering Plans for approval prior to commencement of construction.

i) Written confirmation shall be provided from the electricity network supplier responsible for the area, that provision of an electric supply has been made available by underground or above ground means to all saleable lots created and that all the network supplier's requirements for making such means of supply available have been met or satisfactory arrangements have been concluded with the Consent Holder to complete the provision of the supply.

j) Written confirmation shall be provided from a telecommunications network supplier responsible for the area, that provision of telecommunication services is available to Lots 1-5 inclusive. This may be by wireless means, resulting in a 'Provision of Services' Consent Notice.

k) The consent holder must provide written confirmation from their appointed surveyor or engineer that all servicing for the existing dwelling on Lot 6 and the dwelling under construction on Lot 3 remain within the respective site boundaries.

Consent Notice conditions

6. The following conditions of consent shall be complied with on a continuing basis by the consent holder (which includes the subdividing owner and subsequent owners) and shall be recorded in a consent notice issued pursuant to s221 of the Resource Management Act 1991 registered on the title(s):

Monitoring Charges

a. The respective owners of Lot 1-7 shall pay the council monitoring charge or charges to recover the actual and reasonable costs that have been incurred to ensure compliance with the conditions attached to this consent.

   Such charge/s shall be paid as part of the resource consent fee and the consent holder will be advised of the further monitoring charge or charges as they fall due. Such further charges are to be paid within one month of the date of invoice.

Engineering

b. Upon the construction of habitable buildings, sufficient water volume shall be provided in accordance with NZFS Fire Fighting Water Supplies CoP SNZ 4509:2008 and that this water supply be accessible for firefighting purposes. Should the water supply be provided by way of tank storage, this storage must be located a safe distance away from any habitable dwelling in accordance with the above CoP.

c. Any buildings erected on the building sites identified on the plan shall be subject to the requirements of the report prepared by Engineering Geology Ltd., ref: 8447, dated 14 September 2017, and any subsequent reports. Copies of the said plan and report(s) will be held at the offices of the Council, Centreway Road, Orewa.

d. All stormwater from buildings and paved areas on Lots 1-5 shall be collected and disposed of in accordance with the report prepared by the Stormwater Hydrology Report prepared by Cato Bolam Consultants, ref: 40320, dated 17 October 2017, unless otherwise approved by Council. The collection and disposal system shall be installed in conjunction with the erection of any buildings and shall thereafter be maintained to the specified capacity and standard in perpetuity.

e. Future owners of Lots 1-5 inclusive shall be advised that a physical telecommunication connection have not been provided to these lots and if such services are required, the full cost of providing these services will be met by the owners for the time being. This cost may include the installation of equipment to the utility providers and Council requirements and any growth or other applicable charges.

Access

f. No vehicle access to Lot 1 shall be obtained directly from Remiger Road; all vehicle access shall be obtained from right of way Area EE.

g. The local road network is expected to be subject to flooding that will periodically limit ingress and egress to Lots 1- 8 during and after large rainfall events. The owners of Lots 1-8 shall maintain their respective accesses including the flood markers as and when required.

Landscaping

h. At the time of making a building consent application, the owner of Lot 1 and Lot 2 shall submit for the certification of the Team Leader North- West Monitoring, a landscape planting and management plan (with supporting specifications).

   The landscape planting and management plan shall contain:

- A plan of the planted area/s detailing the proposed plant species, plant sourcing, plant sizes at time of planting, plant locations, density of planting, and timing of planting.
- A programme of establishment and post establishment protection and maintenance (fertilising, weed removal/spraying, replacement of dead/poorly performing plants, watering to maintain soil moisture, length of maintenance programme.
- A methodology to demonstrate how the planting will be physically protected.

The purpose of the planting is to reduce the visibility of buildings and site access from public locations (in particular the road) and assist in reducing potential cumulative effects on rural character and amenity, and to assist in locating the buildings and driveways in a more vegetated landscape. This will require planting on the wider site not only in close proximity to the buildings themselves.

Once the landscape planting and management plan is certified, it shall be implemented in the following planting season. It shall be maintained and retained thereafter.

i. The landscaping within easement areas EE and EA on Lot 6 and on the northern boundary of Lot 5 (amenity planting), approved by resource consent SUB60315119, shall be retained and maintained in perpetuity by the owners of said Lots in accordance with the approved landscaping plan. In the event that the vegetation is dead or dying, it shall be replaced with the same or similar species in the next planting season.

Protection of natural areas

j. The natural areas to be protected on Lot 2 (CX), 4 (CZ),5 (CO & CY), 6 (CV, CS) and 7 (CP – CR, CT -CU) identified by survey in accordance with conditions of resource consent SUB60315119-A shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

k. The owners or their successors in title, of 2, 4, 5, 6 and 7 shall:

i. Preserve the native vegetation, wildlife habitats and the natural landscape within the native areas to be protected on Lots 2, 4, 5, 6 and 7;
ii. Maintain any stock crossings and/or fish passage(s) in accordance with any easements through the covenant areas.
iii. Not (without the prior written consent of the council and then only in strict compliance with any conditions imposed by the council) cut down, damage or destroy, or permit the cutting down, damage or destruction of the vegetation or wildlife habitats within the native areas to protected;
iv. Not do anything that would prejudice the health or ecological value of the natural areas to be protected, their long term viability and/or sustainability;
v. Control all invasive plants and control pest animals within the native areas to be protected, in accordance with the Weed and Pest Animal Control Plan approved by resource consent SUB60315119.

Advice Note*: Weed Control means, that there are no fruiting and / or flowering individuals of weed species present within the covenant area and any mature weed species present are dead. In addition there shall be no areas where weed species are smothering and / or out competing native vegetation including suppressing the natural regeneration processes. Control shall be demonstrated to the satisfaction of council's Team Leader, Northern Monitoring or similar position.*

vi. Maintain an ungated stock-proof fence as approved by the council around the perimeter of the areas of native features to be protected on Lots 2, 4, 5, 6 and 7 and keep stock out of these areas.
vii. Not to be in breach of this covenant if any of the native areas to be protected die as a result of fire and/or natural causes not attributable to any act or default on their part for which they are not responsible.

I. Within one month of the end of every 3 year period following the legal protection of the indigenous vegetation (CU, CP, CQ, CR, CV, CS, CT) within Lots 6 and 7 the consent holder shall submit a Monitoring Report, prepared by a suitably qualified and experience ecologist, of the areas of protected indigenous vegetation to Council's Team Leader, Compliance Monitoring NW1 for audit and certification. The Monitoring Report shall include but is not limited to the following information:

• Effectiveness of fencing;

• Presence of pest animals and plants;

• Health of the indigenous vegetation

• Presence of pollutants;

• Vegetation loss, or clearance, and any remediation;

• Effectively managing and controlling pest animals and plants; and

• Providing appropriate access to any sites and places of significant to Mana Whenua.

Advice Note: The three year monitoring period shall begin once the 224(c) certificate has been issued.

Advice notes

1. *Any reference to number of days within this decision refers to working days as defined in s2 of the RMA.*

2. *For the purpose of compliance with the conditions of consent, "the council" refers to the council's monitoring inspector unless otherwise specified. Please contact Auckland Council on (09) 301 0101 or monitoring@aucklandcouncil.govt.nz to identify your allocated officer.*

3. *For more information on the resource consent process with Auckland Council see the council's website: www.aucklandcouncil.govt.nz. General information on resource consents, including making an application to vary or cancel consent conditions can be found on the Ministry for the Environment's website: www.mfe.govt.nz.*

4. *If you as the applicant disagree with any of the above conditions, or disagree with the additional charges relating to the processing of the application, you have a right of objection pursuant to sections 357A or 357B of the Resource Management Act 1991. Any objection must be made in writing to the council within 15 working days of your receipt of this decision (for s357A) or receipt of the council invoice (for s357B).*

5. *The consent holder is responsible for obtaining all other necessary consents, permits, and licences, including those under the Building Act 2004, and the Heritage New Zealand Pouhere Taonga Act 2014. This consent does not remove the need to comply with all other applicable Acts (including the Property Law Act 2007 and the Health and Safety at Work Act 2015), regulations, relevant Bylaws, and rules of law. This consent does not constitute building consent approval. Please check whether a building consent is required under the Building Act 2004.*

6. *Any reference to number of days within this decision refers to working days as defined in s2 of the RMA.*

7. *For the purpose of compliance with the conditions of consent, "the council" refers to the council's monitoring inspector unless otherwise specified. Please contact Auckland Council on (09) 301 0101 or monitoring@aucklandcouncil.govt.nz to identify your allocated officer.*

8. *For more information on the resource consent process with Auckland Council see the council's website: www.aucklandcouncil.govt.nz. General information on resource consents, including making an application to vary or cancel consent conditions can be found on the Ministry for the Environment's website: www.mfe.govt.nz.*

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10. *The consent holder is responsible for obtaining all other necessary consents, permits, and licences, including those under the Building Act 2004, and the Heritage New Zealand Pouhere Taonga Act 2014. This consent does not remove the need to comply with all other applicable Acts (including the Property Law Act 2007 and the Health and Safety at Work Act 2015), regulations, relevant Bylaws, and rules of law. This consent does not constitute building consent approval. Please check whether a building consent is required under the Building Act 2004.*

Resource Consent Notice of Works Starting

Please email this form to **monitoring@aucklandcouncil.govt.nz at least *5* days prior to work starting** on your development or post it to the address at the bottom of the page.

Site address:				
AREA (please tick the box)	**Auckland CBD☐**	**Auckland Isthmus☐**	**Hauraki Gulf Islands ☐**	**Waitakere ☐**
Manukau ☐	**Rodney ☐**	**North Shore ☐**	**Papakura ☐**	**Franklin ☐**

Resource consent number:	**Associated building consent:**
Expected start date of work:	**Expected duration of work:**

Primary contact	**Name**	**Mobile / Landline**	**Address**	**Email address**
Owner				
Project manager				
Builder				
Earthmover				
Arborist				
Other (specify)				

Signature: Owner / Project Manager (indicate which)	**Date:**

Once you have been contacted by the Monitoring Officer, all correspondence should be sent directly to them.

SAVE $$$ minimise monitoring costs!

The council will review your property for start of works every three months from the date of issue of the resource consent and charge for the time spent. You can contact your Resource Consent Monitoring Officer on 09 301 0101 or via monitoring@aucklandcouncil.govt.nz to discuss a likely timetable of works before the inspection is carried out and to avoid incurring this cost.